An Act

ENROLLED SENATE
BILL NO. 1991

By: Hall of the Senate

and

Caldwell (Trey) of the House

An Act relating to the Long-Range Capital Planning Commission; amending 61 O.S. 2021, Sections 309, 316, 317, 326, and 327, as amended by Sections 39, 42, 43, 46, and 47, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Sections 309, 316, 317, 326, and 327), which relate to state property; directing the monies received from the sale of certain leases and property, bonuses, royalties, and contracts to be deposited in the Oklahoma Capital Assets Maintenance and Protection Fund; amending 62 O.S. 2021, Sections 900, 901, as amended by Section 1, Chapter 439, O.S.L. 2025, and 901.1 (62 O.S. Supp. 2025, Section 901), which relate to the State Capital Improvement Planning Act; modifying application of short title; transferring provisions from repealed section of statutes; eliminating requirement to prepare certain annual budget and capital plan; requiring the Oklahoma State Regents for Higher Education and state governmental entities to cooperate with the Commission in preparation of five-year plans; requiring the Office of Management and Enterprise Services (OMES) to perform services in support of five-year plans; prescribing allocation of monies from the Oklahoma Capital Assets Maintenance and Protection Fund for certain fiscal year; prescribing additional requirements for five-year plans; requiring submission of list of proposed projects pursuant to five-year plans; authorizing OMES to expend certain funds for certain projects; authorizing redirection of certain funds for certain emergency projects; amending 62 O.S. 2021, Section 908, as amended by Section 1, Chapter 188, O.S.L.

2023 (62 O.S. Supp. 2025, Section 908), which relates to the Oklahoma State Government Asset Reduction and Cost Savings Program; eliminating the Maintenance of State Buildings Revolving Fund; amending Section 2, Chapter 441, O.S.L. 2024, as amended by Section 3, Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188B), which relates to the Oklahoma Capital Assets Maintenance and Protection Fund; expanding sources of funds; modifying provisions for which the Oklahoma Capitol Improvement Authority is granted certain authorizations; modifying authorization to provide for construction of property; requiring interest and returns earned on deposits to the fund be deposited to the credit of the fund; amending 74 O.S. 2021, Section 61.8, as amended by Section 1, Chapter 194, O.S.L. 2025 (74 O.S. Supp. 2025, Section 61.8), which relates to the duties of the Commission; directing certain proceeds be deposited in the Oklahoma Capital Assets Maintenance and Protection Fund; modifying requirements for certain report; requiring the remaining balance of the Maintenance of State Buildings Revolving Fund to be transferred to the Oklahoma Capital Assets Maintenance and Protection Fund upon certain date; requiring electronic submission of certain reports; updating statutory language; updating statutory reference; clarifying statutory language; repealing Section 3, Chapter 441, O.S.L. 2024, as amended by Section 2, Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188A), which relates to the Oklahoma Capital Assets Maintenance and Protection Act; providing for noncodification; providing for recodification; providing an effective date; and declaring an emergency.

SUBJECT: Oklahoma Capital Assets Maintenance and Protection Fund

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 61 O.S. 2021, Section 309, as amended by Section 39, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 309), is amended to read as follows:

Section 309. A. The Office of Management and Enterprise Services is hereby authorized ~~and empowered~~ to offer for sale and sell and execute and deliver oil and gas or mineral leases upon the lands described in Section 1 of Title 73 of the Oklahoma Statutes under the control of ~~said~~ the Office of Management and Enterprise Services. The Office of Management and Enterprise Services is hereby authorized ~~and empowered~~ to enter into contracts with persons or corporations for the drilling of oil and gas wells on any such property owned by the state. No such lease or drilling contract shall be entered into by ~~said~~ the Office of Management and Enterprise Services which provides for the payment of a royalty to ~~the State of Oklahoma~~ this state of less than one-eighth (1/8) of all of the oil, gas, or casinghead gas produced, saved, and sold from ~~said~~ such lands, plus cash bonus, of the royalty in ~~said~~ such leases. ~~Such~~ The Office of Management and Enterprise Services shall give notice of its intention to offer for sale ~~said~~ such lease or drilling contract by advertising ~~said~~ such fact for a period of at least twenty-one (21) days electronically on an authorized state website and in a legal newspaper published and of general circulation in the county where ~~said~~ such lands are located. The Office of Management and Enterprise Services shall award such lease, leases, or drilling contracts to the highest responsible bidder. All bidding shall be by sealed written or electronic bids filed with ~~said~~ the Office of Management and Enterprise Services.

B. All royalties, bonuses, and rentals accruing to the state from any contracts or leases executed pursuant to the provisions of subsection A of this section and all other monies received from the sale of any such leases, bonuses, and royalties or other contracts made by ~~said~~ the Office of Management and Enterprise Services shall be credited to the ~~Maintenance of State Buildings Revolving Fund of the State of Oklahoma~~ Oklahoma Capital Assets Maintenance and Protection Fund.

SECTION 2. AMENDATORY 61 O.S. 2021, Section 316, as amended by Section 42, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 316), is amended to read as follows:

Section 316. All proceeds derived from any royalty under such leases or any bonus received from the sale of such leases shall be paid into the ~~Maintenance of State Buildings Revolving Fund of the state~~ Oklahoma Capital Assets Maintenance and Protection Fund, but this section shall not be a part of any contract with any lessee hereunder.

SECTION 3. AMENDATORY 61 O.S. 2021, Section 317, as amended by Section 43, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 317), is amended to read as follows:

Section 317. A. The Office of Management and Enterprise Services is hereby authorized ~~and empowered~~ to sell and execute oil and gas leases, and other mining leases, on any of the lands of this state under the control of ~~said~~ the Office of Management and Enterprise Services. Sale of Oklahoma State Capitol lands or parkways or the Executive Mansion lands shall be made upon a basis of a retained royalty of not less than one-eighth (1/8) of all the oil, gas, and other minerals produced therefrom, and such additional cash bonus as may be procured. Such leases shall contain a provision that in the event of the discovery of natural gas, gas shall be furnished free of charge to any state institution located or hereafter located upon the lands covered by ~~said~~ the lease, or leases. ~~Said~~ Such leases shall be sold only after advertisement for a period of three (3) weeks electronically on an authorized state website and in a legal newspaper published and of general circulation in the county in which ~~said~~ such lands are located. The sale shall be made to the highest responsible bidder, and all bids for any tract shall be presented to the Office of Management and Enterprise Services electronically or in sealed envelopes, and shall all be opened and considered at the same time. ~~Said~~ The Office of Management and Enterprise Services shall have the right to reject any and all of ~~said~~ the bids and again readvertise ~~said~~ such lease, or leases, for sale.

B. The Office of Management and Enterprise Services is further authorized to make and promulgate ~~such~~ additional rules and regulations as he may deem necessary and for the best interest of ~~the~~ this state in facilitating the sale of ~~said~~ such leases. The Director may contract with other state agencies to implement the provisions of this section and any expenses charged under such contract may be paid from the proceeds of the lease.

C. All monies derived from the sale of any and all of ~~said~~ such leases, and from any royalties subsequently accruing, after deduction of the amount required to pay necessary and actual expenses of developing the lease, shall be paid into the State Treasury and credited to the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection Fund.

SECTION 4. AMENDATORY 61 O.S. 2021, Section 326, as amended by Section 46, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 326), is amended to read as follows:

Section 326. After payment of all costs incurred in the inventory and appraisal and advertisement and costs of sale, the remaining proceeds therefrom, and any monies derived from leasing the property described in Section 324 of this title, shall be deposited in the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection Fund. The leasing for oil and gas purposes of any such lands and the proceeds therefrom shall be conducted and handled by the Office of Management and Enterprise Services pursuant to Section 317 of this title.

SECTION 5. AMENDATORY 61 O.S. 2021, Section 327, as amended by Section 47, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 327), is amended to read as follows:

Section 327. A. Unless procedures for state agency real property transactions are otherwise specifically provided for by law, no state agency shall sell, lease, exchange, or otherwise dispose of such real property subject to its jurisdiction, or lease, purchase or otherwise acquire real property subject to its jurisdiction, except as authorized by subsection L of this section and as otherwise provided for in this section. As used in this section, “state agency” means any department, board, commission, institution, agency or entity of state government.

B. 1. Every state agency shall request the Office of Management and Enterprise Services to dispose of real property upon:

a. legislative authorization,

b. authorization by the Long-Range Capital Planning Commission, or

c. a determination, in writing, by the Office of Management and Enterprise Services or the state agency that a parcel of real property subject to its jurisdiction is no longer needed.

2. Upon the request of the state agency to dispose of real property, the Office of Management and Enterprise Services shall estimate the value of the property, and:

a. for properties with an estimated value of greater than Twenty-five Thousand Dollars ($25,000.00), obtain at least one complete appraisal made by a person certified by the Real Estate Appraiser Board of the Oklahoma Insurance Department, who shall ascertain:

(1) the present fair value of the property,

(2) the present value of the improvements on such property, and

(3) the actual condition of the improvements on the property,

b. after completion of the provisions of subsection L of this section, cause notice of such sale to be published for at least one (1) day in a newspaper of general statewide circulation authorized to publish legal notices, and weekly for three (3) consecutive weeks in a newspaper of general circulation published in the county or counties in which the property is located. The notice shall contain the legal description of each parcel of real property to be offered for sale, the appraised value thereof, the time and location of the sale or opening of the bids, and terms of the sale including the fact that no parcel of property shall be sold for less than ninety percent (90%) of the appraised value of the real property; provided, in lieu of such procedure, the information may be published electronically on the

Office of Management and Enterprise Services' website if the notice of sale and instructions on accessing the public information are published in a newspaper of general circulation in the county or counties in which the property is located weekly for three (3) consecutive weeks,

c. offer the property through electronic auction, public auction or sealed bids within three (3) weeks after the last publication of the notice. The property shall be sold to the highest bidder. The Office of Management and Enterprise Services shall not accept a bid of less than ninety percent (90%) of the average appraised fair value of the property and the improvements on such property,

d. if the property is being disposed of in compliance with Section 908 of Title 62 of the Oklahoma Statutes, the Office of Management and Enterprise Services may auction the property at public or electronic auction provided proper public notice is given in compliance with this section and the property has been approved for liquidation by the Long-Range Capital Planning Commission. The Office of Management and Enterprise Services is authorized to reject all bids,

e. if the property has an estimated value of less than Twenty-five Thousand Dollars ($25,000.00), the Office of Management and Enterprise Services may establish the value through market comparison and may dispose of the property based on estimated value without obtaining a certified appraisal; provided, however, the sale shall comply with all other requirements of statute, and

f. if the property is landlocked, the Office of Management and Enterprise Services may offer the property through indirect sale to the adjacent property owner for not less than ninety percent (90%) of fair market value, as determined in compliance with this section. All sales costs, including any required surveys and appraisals, shall be at the expense of the buyer.

3. The cost of the appraisal required by the provisions of this section, together with other necessary expenses incurred pursuant to this section, shall be paid by the state agency for which the real property is to be sold from funds available to the state agency for such expenditure. All monies received from the sale or disposal of the property, except those monies necessary to pay the expenses incurred pursuant to this section, shall be deposited in the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection Fund unless otherwise provided by law.

4. The Office of Management and Enterprise Services may dismiss from consideration any appraisal found to be incomplete or flawed.

C. Unless otherwise provided by law, the Office of Management and Enterprise Services shall review and approve state agency real property transactions. A state agency shall not lease or acquire real property, or lease, dispose of or transfer state-owned real property until the Office of Management and Enterprise Services provides notice of transaction approval to the state agency. Prior to approval, a state agency shall provide documents to the Office of Management and Enterprise Services and provide reference to statutory or other legal authority of the state agency to lease or acquire real property, or lease, dispose of or transfer state-owned real property. If the state agency intends to lease or acquire real property, the state agency shall state the intended use of the real property, and shall provide the Office of Management and Enterprise Services with required telework documentation. Within thirty (30) days of receipt, the Office of Management and Enterprise Services shall provide notice of transaction approval or disapproval to the state agency.

D. The provisions of this section shall not apply to the lease of office space or real property subject to supervision of the Commissioners of the Land Office or district boards of education.

E. 1. The Office of Management and Enterprise Services shall maintain a comprehensive inventory of state-owned real property and its use excluding property of the public schools and property subject to the jurisdiction of the Commissioners of the Land Office.

2. Each state agency shall, within thirty (30) days of the closing date for lands newly acquired, provide to the Office of Management and Enterprise Services a list of records, deeds, abstracts and other title instruments showing the description of and relating to any and all such lands or interests therein.

3. The provisions of paragraph 2 of this subsection shall apply to all lands of public trusts having a state agency as the primary beneficiary, but shall not apply to lands of municipalities, counties, school districts, or agencies thereof, or Department of Transportation rights-of-way.

4. A state agency that sells or otherwise disposes of land shall notify the Office of Management and Enterprise Services within thirty (30) days of the disposition closing date.

F. This section shall not be construed to authorize any state agency, not otherwise authorized by law, to sell, lease, or otherwise dispose of any real property owned by the state.

G. The Office of Management and Enterprise Services and the Secretary of the Commissioners of the Land Office, or designee, as provided in subsection L of this section may provide services to sell, transfer, trade or purchase real property for other state agencies.

H. The Director of the Office of Management and Enterprise Services shall, pursuant to the Administrative Procedures Act, promulgate rules to effect procedures necessary to the fulfillment of its responsibilities under this section.

I. The Oklahoma Ordnance Works Authority and its lands, and the Northeast Oklahoma Public Facilities Authority, the Oklahoma Historical Society, the Oklahoma Department of Transportation, the Oklahoma Turnpike Authority and the Department of Wildlife managed lands shall be exempt from the application of this section. The Grand River Dam Authority and its lands shall be exempt from the application of this section for any real property disposed of prior to November 1, 2006.

J. Unless otherwise provided for by law, the procedures established pursuant to this section for the sale or exchange of real estate or personal property as authorized pursuant to Sections 2222 and 2223 of Title 74 of the Oklahoma Statutes shall be followed unless the sale is to an entity of state government.

K. The Director of the Office of Management and Enterprise Services shall contract with experts, professionals or consultants as necessary to perform the duties of the Office of Management and Enterprise Services. Selections shall be made using the qualifications-based procedures established in Section 62 of this title and the rules promulgated by the Director for the selection of construction managers and design consultants.

L. 1. No state agency shall sell, lease, exchange, or otherwise dispose of such real property subject to its jurisdiction, or lease, purchase or otherwise acquire real property subject to its jurisdiction, until such agency or the Office of Management and Enterprise Services acting on the agency's behalf has presented to the Secretary of the Commissioners of the Land Office, or designee, all information collected pursuant to subparagraph a of paragraph 2 of subsection B of this section, and provided the Secretary of the Commissioners of the Land Office or designee a twenty-calendar-day period to provide a proposal for the acquisition or disposal of applicable real property.

2. The Secretary of the Commissioners of the Land Office or designee may decline to provide such a proposal; provided such notice of decline is communicated to the Office of Management and Enterprise Services in written or electronic form. Upon the reception of such notice of decline by the Office of Management and Enterprise Services, the twenty-calendar-day period otherwise required by this subsection shall be deemed to have expired.

SECTION 6. AMENDATORY 62 O.S. 2021, Section 900, is amended to read as follows:

Section 900. Sections ~~1~~ 901 and ~~2~~ 901.1 of this ~~act~~ title and Section 188B of Title 73 of the Oklahoma Statutes shall be known and may be cited as the "State Capital Improvement Planning Act".

SECTION 7. AMENDATORY 62 O.S. 2021, Section 901, as amended by Section 1, Chapter 439, O.S.L. 2025 (62 O.S. Supp. 2025, Section 901), is amended to read as follows:

Section 901. A. There is hereby created a Long-Range Capital Planning Commission to advise and assist the Legislature in providing for real property capital facility needs for this state. The Commission shall consist of nine (9) members as follows:

1. Three members appointed by the President Pro Tempore of the Senate;

2. Three members appointed by the Speaker of the House of Representatives; and

3. Three members appointed by the Governor.

All appointees shall be from the public at large. Within thirty (30) days of July 1, 2013, the appointing authorities shall appoint new members to the Commission; provided, a member serving on July 1, 2013, may be reappointed if he or she is otherwise qualified. Of the members initially appointed by each appointing authority after July 1, 2013, one shall be appointed for a one-year term, one shall be appointed for a two-year term and one shall be appointed for a three-year term. Thereafter, their successors shall be appointed for four-year terms. Any vacancy shall be filled for the remainder of the unexpired term in the same manner as the original appointment. The appointing authorities shall appoint members who possess knowledge, skills and abilities to perform the duties of the Commission. No member of the Commission shall be interested, directly or indirectly, in any contract entered into for a project approved by the Commission during the period of service of the member, nor shall any person be appointed as a member of the Commission if such person is interested, directly or indirectly, in a contract entered into for a project approved prior to the appointment. An indirect interest shall include, but not be limited to, an interest of an immediate family member of the member of the Commission or a business with which the member of the Commission is associated.

B. A chair of the Commission shall be elected from its membership. Five members of the Commission shall constitute a quorum. Members of the Commission shall serve without compensation, but shall be entitled to reimbursement, pursuant to the State Travel Reimbursement Act, for expenses incurred in the performance of their duties.

C. Initial appointments to the Commission shall be made within thirty (30) days of May 28, 1992.

D. The Commission shall have the authority to promulgate rules and regulations necessary to implement the provisions of the State Capital Improvement Planning Act.

E. The Office of Management and Enterprise Services, with the advice and assistance of the Deputy Treasurer for Debt Management and the Oklahoma Capitol Improvement Authority, shall provide staffing for the Commission and other such assistance as the Commission may require.

F. 1. ~~The Commission shall prepare each year an annual capital plan budget and a state capital plan for addressing state capital facility needs for the next ensuing eight (8) years~~ The Commission shall develop and adopt the following five-year plans to provide for allocations and expenditures of the Oklahoma Capital Assets Maintenance and Protection Fund (OCAMP Fund) as follows:

a. the OCAMP Higher Education Five-year Plan, for the maintaining and repairing of state-owned properties and for addressing facility needs of public institutions of higher learning,

b. the OCAMP Tourism and Recreation Five-year Plan, for the maintaining and repairing of properties and for addressing facility needs of state parks operated by the Oklahoma Tourism and Recreation Department, and

c. the OCAMP State Five-year Plan, for the maintaining and repairing of all state-owned properties and for addressing facility needs of the state.

2. The Oklahoma State Regents for Higher Education and each state governmental entity as defined in Section 695.3 of this title shall cooperate with the Commission in the preparation of the ~~state~~

~~plan~~ five-year plans. ~~Each year, on or about December 1, the plan shall be submitted to the Governor, Speaker of the House of Representatives and President Pro Tempore of the Senate. The Long-Range Capital Planning Commission shall annually update the eight-year plan.~~

3. The Commission shall update each five-year plan no less often than biennially. Upon the adoption of such plans and upon each update to such plans, a report detailing such plans shall be electronically submitted to the Governor, the President Pro Tempore of the Senate, and the Speaker of the House of Representatives.

4. The Office of Management and Enterprise Services shall perform routine services to support the ~~eight-year plan~~ five-year plans, including, but not limited to, agency-level planning, real estate services, construction services and facility operations as provided by law.

5. For fiscal year 2029, the Commission shall allocate Oklahoma Capital Assets Maintenance and Protection Fund monies received to such five-year plans in the following proportions:

a. the OCAMP Higher Education Five-year Plan shall be allocated forty-five percent (45%) of such monies for the following:

(1) twenty percent (20%) of those monies allocated shall be for four-year colleges and universities receiving a Research Colleges and Universities designation from the Carnegie Classification of Institutions of Higher Education to be further allocated as follows:

(a) fifty percent (50%) for those colleges and universities defined as a historically black college or university pursuant to the federal Higher Education Act of 1965, as amended, and

(b) fifty percent (50%) of those monies allocated shall be for other colleges and universities,

(2) thirty-five percent (35%) of those monies allocated shall be for two-year institutions of higher education within The Oklahoma State System of Higher Education, and

(3) forty-five percent (45%) of those monies allocated shall be for all four-year colleges and universities except four-year colleges and universities receiving a Research Colleges and Universities designation from the Carnegie Classification of Institutions of Higher Education,

b. the OCAMP Tourism and Recreation Five-year Plan shall be allocated ten percent (10%) of such monies, and

c. the OCAMP State Five-year Plan shall be allocated forty-five percent (45%) of such monies.

~~2.~~ 6. In addition to the requirements set forth in Section 901.1 of this title, the ~~capital plan~~ five-year plans should:

a. supplement and integrate, not replace, existing capital planning processes,

b. assess long-term needs for capital facilities to support state government needs as determined by the Commission,

c. review and assess the inventory of capital facilities held by the state, and make recommendations on reallocation, reuse or liquidation of properties for incorporation into the ~~annual capital plan~~ five-year plans,

d. include a projection of economic and demographic trends likely to influence the needs of state government during the ~~eight-year~~ five-year period,

e. address agency strategic facility plans for new, improved, renovated, or expanded capital facilities or facilities that should be reallocated or liquidated,

f. include estimates of life cycle costs for new and substantially expanded or renovated facilities,

g. evaluate the effectiveness of planning processes at the agency level to account for all capital facility costs for incorporation into the ~~annual capital budget~~ five-year plans,

h. account for projections of debt service and revenues available from general obligation bonds and other sources, including, but not limited to, the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection Fund,

i. analyze the capacity of the state to incur debt or finance public capital facilities,

j. include a comprehensive listing of all capital expenditures of the state which the Commission recommends be undertaken or continued for any state agency in the next two (2) fiscal years, together with information as to the effect of such capital projects on future operating expenses of the state, and with recommendations as to the priority of such capital projects and the means of funding them,

k. forecast the requirements for capital projects of state agencies for the ~~eight-year~~ five-year period and for such additional periods, if any, as may be necessary or desirable for adequate presentation of particular capital projects, and include a schedule for the planning and implementation or construction of such capital projects,

l. set forth a proposed itemized budget for the next ~~fiscal year~~ two (2) fiscal years of recommended capital expenditures inclusive of all funding sources, for each agency, including facility rent and lease payments, energy and utility expenditures, operations and maintenance, capital improvements and capital development projects as necessary to optimize and preserve the state's capital assets,

m. include the findings of the Oklahoma State Government Asset Reduction and Cost Savings Program and the indexing of the most necessary capital improvements to the expenditure of funds from the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection Fund, and

n. include such other information as the Commission deems relevant to its duties~~, and~~

~~o. include findings of the Oklahoma State Government Asset Reduction and Cost Savings Program and the indexing of the most necessary capital improvements to the expenditure of funds from the Maintenance of State Buildings Revolving Fund~~.

G. The ~~capital plan budget~~ five-year plans shall include, for each expenditure and class of expenditures, the capital facility costs to be incurred during the next ~~ensuing fiscal year~~ two (2) fiscal years, inclusive of the annual operating and maintenance costs of such facilities and a schedule of depreciation calculated in accordance with the principles and standards of capital budgeting authorized by subsection H of this section.

H. The Commission, with the assistance of the Office of Management and Enterprise Services, shall prepare and publish rules and regulations that set forth principles and standards for capital planning and budgeting to be used by state agencies. The rules and regulations shall set forth definitions of relevant terms to be used in the capital planning and budgeting processes, establish accounting standards, and establish standards for costs and benefits of public facility investments.

I. 1. The Commission, the Office of Management and Enterprise Services, and the Deputy Treasurer for Debt Management may request the assistance of such personnel of any state agency in order to perform their duties pursuant to the State Capital Improvement

Planning Act and such agencies shall respond and provide any ~~such~~ assistance as may be required. The Commission may use existing studies, surveys, plans, data, and other materials in the possession of any state agency. Each ~~such~~ agency shall make the same available to the Commission so that the Commission may have available to it current information with respect to the capital plans and programs of each ~~such~~ agency.

2. The officers and personnel of any state agency may serve at the request of the Commission upon such advisory committees as the Commission may create and such officers and personnel may serve upon such committees without forfeiture of office or employment and with no loss or diminution of the compensation, status, rights, and privileges which they otherwise enjoy.

J. The Commission may direct the Oklahoma Capitol Improvement Authority to allocate, budget, and expend, either directly or under the terms of memoranda of understanding lawfully entered into with other state entities, monies from the Oklahoma Capital Assets Maintenance and Protection Fund on any project or item that has been included in an applicable five-year plan authorized under the provisions of the Oklahoma Capital Assets Maintenance and Protection Act for no less than one (1) year.

K. This section shall not be applicable to the following or their lands, properties, buildings, funds, or revenue:

1. The Oklahoma Ordnance Works Authority; and

2. The Commissioners of the Land Office.

~~K. The Commission shall develop plans, adopt authorizations, and fulfill the duties required pursuant to Section 188A of Title 73 of the Oklahoma Statutes.~~

SECTION 8. AMENDATORY 62 O.S. 2021, Section 901.1, is amended to read as follows:

Section 901.1. A. The Long-Range Capital Planning Commission shall electronically submit an itemized list of the proposed projects set forth in ~~its annual capital plan~~ the five-year plans, created pursuant to paragraph 1 of subsection F of Section 901 of this title, to the Governor, the President Pro Tempore of the Senate, and the Speaker of the House of Representatives within the first seven (7) legislative days of a regular legislative session following each update required pursuant to paragraph 3 of subsection F of Section 901 of this title. The list shall be in the order of the priority of the projects as determined by the Commission. The submission to such elected officials shall occur upon the same date for purposes of computing the time within which action must be taken as further prescribed by this subsection. The Legislature shall have a period of forty-five (45) calendar days from the date on which the list is submitted to pass a concurrent resolution disapproving any or all of the proposed projects. If the Legislature does not disapprove any proposed project by concurrent resolution by the end of the forty-fifth day following the date upon which the proposed issuance is submitted, the proposed projects shall be deemed to have been approved by the Legislature.

B. Upon approval of all or any part of the list of proposed projects required pursuant to subsection A of this section, the Office of Management and Enterprise Services may expend funds in the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection Fund for approved projects in the order of priority set forth in its ~~annual capital plan~~ five-year plans.

C. In the event an emergency has been declared as provided for in Section 130 of Title 61 of the Oklahoma Statutes, and as a result thereof, repair or maintenance of a capital facility held by the state is required, a state agency may submit a request to the Director of the Office of Management and Enterprise Services to substitute the emergency project for any other project or projects of the state agency on the approved current ~~fiscal year's Capital Improvement Plan~~ list required pursuant to subsection A of this section, or to add the emergency project if the state agency does not have any projects on the approved current ~~fiscal year's Capital Improvement Plan~~ list; provided:

1. The Director determines that there are funds available in the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection Fund to cover all or part of the cost of the emergency project; and

2. The Director electronically submits information on the emergency project and the cost thereof to the President Pro Tempore of the Senate and the Speaker of the House of Representatives and they approve the substitution within five (5) calendar days of ~~such~~ submission.

D. The Director has authority to redirect funds within the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection Fund for emergency projects approved by the President Pro Tempore of the Senate and the Speaker of the House of Representatives.

SECTION 9. AMENDATORY 62 O.S. 2021, Section 908, as amended by Section 1, Chapter 188, O.S.L. 2023 (62 O.S. Supp. 2025, Section 908), is amended to read as follows:

Section 908. A. There is hereby established the Oklahoma State Government Asset Reduction and Cost Savings Program.

B. No later than December 31 each year, the Director of the Office of Management and Enterprise Services shall publish a comprehensive report detailing state-owned properties.

C. The report mandated in accordance with the provisions of this section shall list the five percent (5%) most underutilized state-owned properties. The report shall describe the value of properties falling within the description in this subsection, assess the potential for purchase should the properties be offered for sale, and describe the impact on local-level tax rolls in the event the properties are purchased by a nongovernmental entity.

D. The Director of the Office of Management and Enterprise Services shall promulgate rules establishing procedures by which each state agency, board, commission, and public trust having the state as a beneficiary, excluding those otherwise exempted under Section 327 of Title 61 of the Oklahoma Statutes, shall submit the necessary data to the Office of Management and Enterprise Services for the development of this report.

E. State agencies, boards, commissions, and public trusts having the state as a beneficiary shall comply with procedures promulgated pursuant to the terms of this section.

F. The report and data collected pursuant to this section shall be published as a data feed on the data.ok.gov website.

G. In addition to the requirements of subsection C of this section, the Office of Management and Enterprise Services may make recommendations for the sale of other state-owned properties based upon the value of the property and the potential for net gain for the state based upon the data obtained for the Oklahoma State Government Asset Reduction and Cost Savings Program.

H. ~~There is hereby created the Maintenance of State Buildings Revolving Fund. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall serve as the depository for proceeds from the sale of state-owned properties pursuant to the Oklahoma State Government Asset Reduction and Cost Savings Program. The fund shall further consist of monies appropriated thereto and other funds designated for deposit therein. All monies accruing to the credit of the fund are hereby appropriated and may be expended exclusively for maintaining and repairing state-owned properties and buildings pursuant to the procedures set forth in Section 901.1 of Title 62 of the Oklahoma Statutes and for acquisition of information technology tools or resources that state agencies, boards, commissions, and public trusts having the state as a beneficiary shall use in carrying out their obligations in accordance with this act. The total expenditure for information technology resources shall not exceed One Hundred Thousand Dollars ($100,000.00). Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment. Expenditures from the Maintenance of State Buildings Revolving Fund shall be detailed in a data feed and made available through the data.ok.gov web portal.~~

~~I.~~ The Director of the Office of Management and Enterprise Services shall notify entities found by the Office <u>of Management and Enterprise Services</u> to be out of compliance with the reporting provisions of this section in writing.

~~J.~~ <u>I.</u> This section shall not be applicable to the following or their lands, properties, buildings, funds, or revenue:

1. The Oklahoma Ordnance Works Authority;

2. The Commissioners of the Land Office; and

3. Institutions comprising The Oklahoma State System of Higher Education, except as to the data reporting requirements in this section.

~~K.~~ J. The report required in subsection B of this section shall include an indication of whether a property is owned by the Oklahoma Historical Society, is listed on the National Register of Historic Places or with the National Trust for Historic Preservation, or is potentially of historical significance. The Office of Management and Enterprise Services shall notify the Oklahoma Historical Society and obtain its approval prior to the sale of any such property.

SECTION 10. AMENDATORY Section 2, Chapter 441, O.S.L. 2024, as amended by Section 3, Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188B), is amended to read as follows:

Section 188B. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Capitol Improvement Authority to be designated the "Oklahoma Capital Assets Maintenance and Protection Fund" (OCAMP Fund). The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Capitol Improvement Authority ~~eligible under law and~~ directed for deposit to the fund and proceeds from the sale of state-owned properties pursuant to the Oklahoma State Government Asset Reduction and Cost Savings Program. All monies accruing to the credit of the fund are hereby appropriated and, except for the transfer required pursuant to Enrolled Senate Bill No. 1125 of the 2nd Session of the 59th Oklahoma Legislature, may be allocated, budgeted, and expended by the Oklahoma Capitol Improvement Authority as directed by the Long-Range Capital Planning Commission. Such allocations, budgeting, and expenditures shall strictly adhere to the specific terms, limitations, purposes, and requirements described in the directive adopted by the Commission. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

B. The Oklahoma Capitol Improvement Authority shall be authorized to enter into memoranda of understanding with agencies, departments, and subdivisions of the state as provided by law and as deemed necessary by the Authority to administer expenditures from and allocations and deposits to and from the Oklahoma Capital Assets Maintenance and Protection Fund, provided that such memoranda of understanding do not conflict with or impede the administration of capital projects specifically authorized by law or directed by the Commission. Such memoranda of understanding shall not constitute a legal obligation of this state.

C. Limited to the extent required for projects specifically authorized under the provisions of the ~~Oklahoma Capital Assets Maintenance and Protection Act~~ State Capital Improvement Planning Act, the Oklahoma Capitol Improvement Authority shall be authorized to:

1. Acquire real property together with improvements located thereon and personal property;

2. Provide for the construction of ~~improvements to~~ real property and to provide funding for repairs, refurbishments, deferred maintenance, and improvements to real and personal property;

3. Hold title to property and improvements as necessary to comply with legal directives and authorizations; and

4. Lease, transfer, and otherwise legally dispose of property and improvements as necessary to comply with legal directives and authorizations.

D. No later than January 15 annually, the Oklahoma Capitol Improvement Authority shall submit electronically to the Governor, the President Pro Tempore of the Senate, the Speaker of the House of Representatives, the Chair of the Appropriations Committee of the Senate, and the Chair of the Appropriations and Budget Committee of the House of Representatives a report detailing impacts to the balance of the Oklahoma Capital Assets Maintenance and Protection Fund occurring in the prior calendar year, including, but not limited to, all distributions, expenditures, collections, and deposits of the Oklahoma Capital Assets Maintenance and Protection Fund.

E. Notwithstanding any provision of law to the contrary, all interest and income derived from deposits to the OCAMP Fund shall be credited to the OCAMP Fund.

SECTION 11. AMENDATORY 74 O.S. 2021, Section 61.8, as amended by Section 1, Chapter 194, O.S.L. 2025 (74 O.S. Supp. 2025, Section 61.8), is amended to read as follows:

Section 61.8. A. The Long-Range Capital Planning Commission shall work to decrease the amount of property owned by Oklahoma state government, return state-owned property to private sector ownership, better maintain and utilize the state's needed capital assets, and, whenever possible, eliminate the practice of state agencies leasing real property not owned by the state.

B. Each year, the Director of the Office of Management and Enterprise Services, at the direction of the Long-Range Capital Planning Commission, shall take action to approve the privatization of state-owned real property as identified pursuant to the Oklahoma State Government Asset Reduction and Cost Savings Program. Proceeds from the liquidation of real properties shall be deposited into the ~~Maintenance of State Buildings Revolving Fund~~ Oklahoma Capital Assets Maintenance and Protection Fund.

C. Prior to entering into or renewing a lease for real property, each state agency, board, commission, and public trust having the state as a beneficiary shall receive approval for entering into the lease from the Office of Management and Enterprise Services.

D. Prior to making a purchase of real property or constructing a building, each state agency, board, commission, and public trust having the state as a beneficiary shall receive approval for the purchase or construction from the Director of the Office of Management and Enterprise Services; provided, if such purchase or construction is deemed by the Director of the Office of Management and Enterprise Services to be within the authority of the Long-Range Capital Planning Commission, the Director shall not approve the purchase or construction and shall refer the request to the Commission for action.

E. Prior to approval or referral pursuant to subsection C or D of this section, the Office of Management and Enterprise Services shall determine if the applicant entity can utilize already existing state-owned real property as an alternative to leasing non-state-owned real property or purchasing or constructing new real property. If such existing state-owned real property is owned by the Oklahoma Historical Society, is listed on the National Register of Historic Places or with the National Trust for Historic Preservation, or is potentially of historical significance, the Office of Management and Enterprise Services shall notify the Oklahoma Historical Society and obtain its approval prior to approving an application for its reuse.

F. No state agency, board, commission, or public trust having the state as its beneficiary shall transfer any real property owned by the agency, board, commission, or trust to any other state agency, board, commission, state beneficiary trust, or any public or private entity unless the transfer is first approved by the Long-Range Capital Planning Commission. Any transfer made without the prior approval of the Long-Range Capital Planning Commission as required by this subsection may be reversed by the Long-Range Capital Planning Commission and if a transfer is reversed the agency, board, commission, state beneficiary trust, or other state government entity to which the real property has been impermissibly transferred shall take such actions to convey the subject property to the entity from which the asset was acquired not later than thirty (30) days from the date an order for such transfer is entered by the Long-Range Capital Planning Commission. The Commission shall not approve any transfer unless proceeds from the sale shall be deposited within the ~~Maintenance of State Buildings Revolving Fund as established by Section 908 of Title 62 of the Oklahoma Statutes~~ Oklahoma Capital Assets Maintenance and Protection Fund.

G. By February 1 of each year, the Office of Management and Enterprise Services shall publish a report for the preceding calendar year listing the parcels of previously state-owned property sold, detailing the reduction in the amount of space leased by the state~~, describing the source of funds and expenditures from the Maintenance of State Buildings Revolving Fund, and showing the manner in which deferred maintenance needs are being met~~. The report shall be <u>electronically</u> provided to the Governor, Speaker of the House of Representatives, and President Pro Tempore of the Senate and placed on the documents.ok.gov web portal.

H. This section shall not be applicable to the following or their lands, properties, buildings, funds, or revenue:

1. The Oklahoma Ordnance Works Authority;

2. The Commissioners of the Land Office;

3. The Department of Transportation;

4. The Oklahoma Turnpike Authority; and

5. The Grand River Dam Authority.

I. The Director of the Office of Management and Enterprise Services may make recommendations to the Long-Range Capital Planning Commission for liquidation of underutilized properties that have environmental issues, create a liability for the state, or create expenses that make the continued ownership of the underutilized property undesirable and the property has been offered through two public auctions or sealed bids and no viable bids were received. If the Long-Range Capital Planning Commission approves the liquidation of the property, the Office of Management and Enterprise Services may accept a bid of less than ninety percent (90%) of the appraised value in accordance with Section 327 of Title 61 of the Oklahoma Statutes.

SECTION 12. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

Upon the effective date of this act, any remaining, unencumbered balance in the Maintenance of State Buildings Revolving Fund shall be transferred to the Oklahoma Capital Assets Maintenance and Protection Fund.

SECTION 13. RECODIFICATION Section 2, Chapter 441, O.S.L. 2024, as amended by Section 3, Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188B), and as amended by Section 10 of this act, shall be recodified as Section 901.2 of Title 62 of the

Oklahoma Statutes, unless there is created a duplication in numbering.

SECTION 14. REPEALER Section 3, Chapter 441, O.S.L. 2024, as amended by Section 2, Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188A), is hereby repealed.

SECTION 15. This act shall become effective July 1, 2026.

SECTION 16. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 23rd day of March, 2026.

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Presiding Officer of the Senate

Passed the House of Representatives the 13th day of April, 2026.

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Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this ____________________

day of ___________________, 20_______, at _______ o'clock _______ M.

By: _________________________________

Approved by the Governor of the State of Oklahoma this _________

day of ___________________, 20_______, at _______ o'clock _______ M.

____
Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this __________

day of __________________, 20 _______, at _______ o'clock _______ M.

By: _________________________________